
2:00 PM - LINE 6

24-CLJ-07288

SYNCHRONY BANK VS. ZAW OO

SYNCHRONY BANK
ZAW OO

JULI BHUSKUTE

MOTION FOR ENTERING JUDGMENT PURSUANT TO DEFENDANT'S DEFAULT UNDER SETTLEMENT AND RELEASE AGREEMENT [C.C.P. 664.6]

TENTATIVE RULING:

Plaintiff Synchrony Bank's unopposed motion to enter judgment pursuant to the parties' stipulation against defendant Zaw Oo is **DENIED**.

Under Code of Civil Procedure, section 664.6 the court retains jurisdiction in a case pending full performance of the terms of a written settlement agreement and such agreement may then be enforced upon motion of the aggrieved party.

Here, the parties entered into a stipulated settlement agreement on or around January 8, 2025 and plaintiff filed a notice of settlement of the entire case with this court on March 24, 2025. A copy of the parties' settlement agreement is attached as Exhibit 1 to the declaration of plaintiff's counsel Spencer Penuela, filed in support of this motion. The parties agreed that judgment in the amount of \$3,179.32 would not be entered so long as defendant made monthly payments to plaintiff until the balance was paid judgment amount in full. (Penuela Decl., ¶ 4, see also exh. 1, ¶¶ 1, 3, 5, 9.)

In the event of default, the parties agreed that the court was authorized to enter judgment in favor of the plaintiff and against defendant in the amount of \$14,548.24, plus costs, minus credit for any payments actually made pursuant to the Stipulation. (Penuela Decl., exh. 1 ¶ 5.) Defendant defaulted after making payments totaling \$1,800. (*Id.*, ¶ 6.)

The parties' agreement required plaintiff to notify defendant in writing of the default and provide time to cure. (Penuela Decl., exh. 1 ¶ 5.) No notice of default appears to have been sent. Accordingly, the court cannot enforce the terms of the settlement agreement and finds that plaintiff has not established that it is entitled to the judgment sought. The motion is therefore denied.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM - **LINE 7**

25-CIV-08668

WEI FANG CHEN, ET AL VS. DAKSH CHAPLOT, ET AL

WEI FANG CHEN
DAKSH CHAPLOT

ROBERT CHEASTY
SHAYNE L. WULTERIN

DEFENDANT DAKSH CHAPLOT'S MOTION TO STRIKE PORTIONS OF COMPLAINT

TENTATIVE RULING:

Defendant Daksh Chaplot's Motion to Strike Portions of the Complaint is **DENIED**.

Defendant moves to strike only page 3, ¶ 14(a)(2), that reads "punitive damages." (Defendant's Notice of Motion, at p. 2.) However, the Complaint contains an Exemplary Damages Attachment that sets forth the allegations in support of Plaintiffs' punitive damages. (Complaint, at p. 6.)

"A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively." (Cal. Rules of Court, rule 3.1322(a).) Further, if a pleading is challenged, a motion must state the specific portion challenged. (*Id.*, rule 3.1112(d)(4).) Thus, the court finds no point to striking the prayer for punitive damages at page 3 of the Complaint when the Exemplary Damages Attachment remains part of the Complaint. Defendant seems to concede this procedural defect by improperly asking in reply that the allegations in the Exemplary Damages Attachment also be stricken. (Defendant's Reply, at p. 11.) Because defendant did not include such a request in defendant's Notice, it is not properly before the court.

In addition, defendant's Memorandum fails to analyze the Complaint's allegations against defendant in support of the punitive damages claim. Instead, defendant's Memorandum focuses solely on the allegations against another defendant, Hertz Vehicles LLC. (See Defendant's Memorandum, at p. 5:1-4.)

Defendant also moves in the alternative that the court order an amendment making clear that punitive damages are sought solely against the DOE security guard and not against defendant Chaplot. However, the Complaint does not contain any allegations regarding a security guard, and defendant fails to address this argument in defendant's Memorandum.

Defendant is to file and serve an Answer to the Complaint within twenty (20) days of service of written notice of entry of the formal order by plaintiffs.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiffs' counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and
